

Counterfactual Supported Rule 54(b) Order

Filed: February 4, 2026 Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED

United States District Court for the Northern District of West Virginia

Proceeding: Decision on renewed request for entry of final judgment on Count I.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

The Court considers Asterglen's renewed request under Federal Rule of Civil Procedure 54(b), the January 12, 2026 memorandum opinion dismissing Count I with prejudice, and the parties' January 28 stipulation. The stipulation dismisses Copper Kestrel's \$120,000 amended counterclaim with prejudice and narrows Count II to Meridian Silt's alleged independent conduct after the July 22 termination.

Rule 54(b) permits entry of judgment on fewer than all claims when the adjudicated claim is finally resolved and the Court expressly determines that there is no just reason for delay. Count I is an individual claim for contract damages against Copper Kestrel. Its dismissal with prejudice is an ultimate disposition. The Court separately evaluates whether immediate judgment is appropriate in the changed posture rather than treating final disposition alone as sufficient.

Relationship of the Resolved and Remaining Claims

The earlier record presented substantial overlap. Count I, Count II, and Copper Kestrel's counterclaim involved Section 9.2, the July 8 discussion, the July 18 audit, cure feasibility, competing damages, and possible setoff. The January 28 stipulation materially removes those concerns.

The counterclaim no longer exists and cannot offset, moot, or alter a judgment on Count I. The remaining portion of Count II does not allege that Meridian induced Copper Kestrel's pre-termination breach and does not seek a decision about the twelve-terminal limit, oral permission, or Asterglen's compliance with Section 9.2. It is confined to Meridian's independent task activity after July 22, alleged interference with surviving confidentiality and closeout duties, and distinct damages capped at \$60,000.

An appeal from Count I will address whether Asterglen's immediate termination and \$480,000 demand were barred by the written notice-and-cure condition. Trial of narrowed Count II will address Meridian's notice, purpose, and conduct during July 22–25. Background chronology may appear in both proceedings, but the dispositive legal questions, operative actors, and requested monetary relief are now separate.

The Court therefore finds little risk that the court of appeals would need to decide the same issue twice or that later district proceedings would make appellate review unnecessary.

Delay, Equities, and Judicial Administration

Waiting for final resolution of narrowed Count II would postpone review of a fully disposed \$480,000 contract claim even though the remaining case no longer contains a competing contract demand or overlapping damages. The limited interference claim may proceed through discovery and trial independently. Neither the notice of appeal nor certification automatically stays those proceedings.

Immediate review may settle the legal consequence of Section 9.2 for Count I without requiring the appellate court to supervise unfinished factual disputes. Reversal would restore only Asterglen's contract claim against Copper Kestrel; it would not revive the dismissed counterclaim or expand Count II. Affirmance would leave a single narrow claim for district adjudication. Either result produces a clear procedural posture.

The equities do not show strategic hardship to Copper Kestrel or Meridian Silt. Copper agreed to final dismissal of its counterclaim, and Meridian agreed to the narrowing that makes its remaining exposure distinct. Asterglen faces continued uncertainty about a substantial finally dismissed claim, while the defendants identify no evidence that certification would impair the remaining schedule.

Considering claim relationship, possible mootness, repeated-review risk, setoff, litigation progress, and the parties' concrete interests, the Court expressly determines that there is no just reason for delay.

Order

For the reasons stated, the Court ORDERS:

1. The January 28 stipulation is APPROVED. Copper Kestrel's amended counterclaim is dismissed with prejudice, and Count II is limited to the post-July 22 claim and distinct damages described there.
2. The January 12 dismissal with prejudice finally resolved Count I against Copper Kestrel.
3. The Court expressly determines that there is no just reason for delay in entering judgment on Count I.
4. The Clerk is directed under Rule 54(b) to enter a separate final judgment in favor of Copper Kestrel and against Asterglen on Count I only.
5. Narrowed Count II against Meridian Silt remains pending. This order does not adjudicate that claim, stay district proceedings, or express any view about its merits.

This certification rests on the present posture created by the binding stipulation, not on a general preference for immediate appeals. The dismissal of the counterclaim eliminates potential setoff, and the narrowing of Count II eliminates the principal risk of duplicative merits review. The Court has made both determinations required by Rule 54(b): final disposition of a distinct claim and an express, case-specific finding that delay is not justified.

Entered February 4, 2026.

United States District Court Judicial signature designation